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Case Number: 25PSCV03144 Hearing Date: August 17, 2026 Dept: 6

CASE NAME: Hortencia Diaz Ruiz v. Irene Miranda Diaz, et al.

Plaintiff's Motion to Strike Defendants' Answers to Plaintiff's Verified First Amended Complaint

TENTATIVE RULING

The Court GRANTS Plaintiff's Motion to Strike Defendants' Answers to Plaintiff's Verified First Amended Complaint.

The Court hereby STRIKES Defendant Irene Miranda Diaz's Answer to the First Amended Complaint and ORDERS Defendant Irene Miranda Diaz to file a verified answer within ten calendar days of the Court's order.

The Court hereby STRIKES Defendant Underwood Law Firm, P.C.'s Answer to the First Amended Complaint and ORDERS Defendant Underwood Law Firm, P.C. to file a verified code compliant answer within ten calendar days of the Court's order.

The Court DENIES Plaintiff's request for attorney's fees and costs.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a real property dispute. On August 29, 2025, plaintiff Hortencia Diaz Ruiz (Plaintiff) filed this action against defendants Irene Miranda Diaz, John Doe, and Does 1 through 100, alleging causes of action for quiet title, breach of oral contract, conversion, and declaratory relief. On January 12, 2026, Plaintiff filed the operative First Amended Complaint (FAC) against defendants Irene Miranda Diaz (Irene),^[1] Gabriel Contreras (Contreras), Underwood Law Firm, P.C. (Underwood) (collectively, Defendants), and Does 1 through 10, alleging causes of action for quiet title, breach of oral contract, conversion, intentional misrepresentation, declaratory relief, financial elder abuse, and cancellation of instrument. On May 12, 2026, the Court sustained Defendants Underwood and Irene's demurrers to the FAC's Fifth Cause of Action for declaratory relief without leave to amend. On May 21, 2026, Underwood answered the FAC. On May 27, 2026, Irene answered the FAC.

On June 16, 2026, Plaintiff moved to Underwood's and Irene's respective Answers to the FAC. On August 4, 2026, Underwood and Irene opposed the Motion. On August 11, 2026, Plaintiff replied to Underwood's and Irene's Opposition.

LEGAL STANDARD

“Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof, but this time limitation shall not apply to motions specified in subdivision (e).” (Code Civ. Proc., § 435, subd. (b)(2).) “The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Id., § 436.)

DISCUSSION

Meet and Confer

The Court finds Plaintiff’s efforts to meet and confer by telephone before filing this Motion to Strike sufficient. (Rodriguez Decl., ¶ 10; Code Civ. Proc., § 435.5, subd. (a).)

Unverified Answers

When the complaint is verified, the answer shall be verified. In all cases of a verification of a pleading, the affidavit of the party shall state that the same is true of his own knowledge, except as to the matters which are therein stated on his or her information or belief, and as to those matters that he or she believes it to be true; and where a pleading is verified, it shall be by the affidavit of a party, unless the parties are absent from the county where the attorney has his or her office, or from some cause unable to verify it, or the facts are within the knowledge of his or her attorney or other person verifying the same...

When a corporation is a party, the verification may be made by any officer thereof.

(Code Civ. Proc., § 446, subd. (a).)

Plaintiff seeks to strike Irene’s and Underwood’s Answers to the FAC on the grounds that they are not verified per Code of Civil Procedure section 446. In opposition, Irene and Underwood do not dispute that their respective Answers are unverified, but instead contend that the Court should deny the Motion because it is untimely based on Plaintiff having filed this Motion more than 10 days after the Answers were filed and served, even accounting for the two court-day electronic service extension.

The Court finds Plaintiff’s Motion persuasive. While Irene and Underwood are correct that Plaintiff’s Motion is untimely, the Court retains discretion to consider a late-filed motion to strike. (See Code Civ. Proc., § 436 [court may strike pleadings upon motion “or at any time in its discretion”]; CPF Agency Corp. v. R&S Towing (2005) 132 Cal.App.4th 1014, 1020-1021 [court has discretion to consider a late-filed motion to strike].) Irene and Underwood have also not shown any prejudice caused by the delay. (Amacorp Indus. Leasing Co. v. Robert C. Young Assocs., Inc. (1965) 237 Cal.App.2d 724, 730 [“recent California cases upholding a motion to strike for failure to timely file all involve aggravated circumstances,” such as “frivolous and sham demurrers” or “a purposely dilatory defendant”].) The Court therefore exercises its discretion to consider Plaintiff’s Motion to Strike.

The Answers are not verified and therefore fail to comply with Code of Civil Procedure section 664.6, subdivision (a). (Answer (5/21/26) [Underwood]; Answer (5/27/26) [Irene].) Irene and Underwood do not dispute that their Answers are unverified and therefore noncompliant. (See generally, Opp.; see D.I. Chadbourne, Inc. v. Superior Court (1964) 60 Cal.2d 723, 728, fn. 4 [where nonmoving party fails to oppose a ground for a motion, “it is assumed that [nonmoving party] concedes” that ground].) Accordingly, Irene’s and Underwood’s Answers are subject to being stricken. (Zavala v. Bd. of Trs. (1993) 16 Cal.App.4th

1755, 1761 [proper procedure for attacking unverified pleading is a motion to strike].) Furthermore, Underwood's Answer is a general denial and does not contain a denial of the allegations of the complaint.

Based on the foregoing, the Court GRANTS the Motion to strike the answers.

Plaintiff also requests attorney's fees and costs incurred in filing this motion. However, Plaintiff does not cite any statutory basis for awarding attorney's fees. None of the statutes cited as grounds for the motion to strike provide for an award of attorney's fees or costs. Thus, the Court DENIES the request for attorney's fees and costs.

CONCLUSION

The Court GRANTS Plaintiff's Motion to Strike Defendants' Answers to Plaintiff's Verified First Amended Complaint.

The Court hereby STRIKES Defendant Irene Miranda Diaz's Answer to the First Amended Complaint and ORDERS Defendant Irene Miranda Diaz to file a verified answer within ten calendar days of the Court's order.

The Court hereby STRIKES Defendant Underwood Law Firm, P.C.'s Answer to the First Amended Complaint and ORDERS Defendant Underwood Law Firm, P.C. to file a verified code compliant answer within ten calendar days of the Court's order.

The Court DENIES Plaintiff's request for attorney's fees and costs.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.

[1] The Court refers to Irene by her first name only to avoid confusion. No disrespect is intended.